

26STCV01098 26STCV01098

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Rotibi v. M&Y Personal Injury Lawyers, APLC, et al.

Tuesday,

September 15, 2026

[TENTATIVE] ORDER TAKING OFF CALENDAR, DEFENDANTS' ANTI-SLAPP
MOTION TO STRIKE

PLAINTIFF'S COMPLAINT OR PORTION THEREOF PURSUANT TO CODE OF CIVIL
PROCEDURE §425.16 (2488)// ORDER DISMISSING ACTION AGAINST DEFENDANTS M&Y PERSONAL
INJURY LAWYERS, APLC, DANIEL REEVES AND KELSEY GITILIN (7463).

This

action arises from alleged legal malpractice. On July 24, 2026, the Court granted the motion of M&Y Personal Injury Lawyers, APLC, Daniel Reeves and Kelsey Gitlin [Collective "the M&Y Defendants"] to declare Plaintiff a vexatious litigant pursuant to Code of Civil Procedure sections 391.1 and 391.3. The Court further determined that Plaintiff did not have a reasonable probability of prevailing against the moving Defendants and ordered Plaintiff to furnish security in the amount of \$15,000 within 20 days, or by August 13, 2026. (M.O. 7/24/26.)

The

Court's July 24, 2026 order further recognized that Code of Civil Procedure section 391.6 stays the litigation upon the filing of a motion pursuant to section 391.1 and, where the motion is granted, continues the stay until the required security has been furnished and the moving defendant has been given

written notice thereof. Accordingly, the Court determined that it would not proceed with further litigation of the action, including the Special Motion to Strike pursuant to Code of Civil Procedure section 425.16 filed by State Farm Automobile Insurance Company and Christopher Babadjanian [Collectively “the State Farm Defendants”], until the Court determined whether Plaintiff had complied with the order requiring security. (M.O. 7/24/26.)

Plaintiff

has not complied. The Court’s record does not reflect that Plaintiff furnished the required \$15,000 security by August 13, 2026, or at any time thereafter. Code of Civil Procedure section 391.4 provides that “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” The security ordered on July 24, 2026 was ordered for the benefit of the M&Y Defendants who brought the motion pursuant to section 391.1. Because Plaintiff failed to furnish that security as ordered, dismissal as to those Defendants is required.

Accordingly,

pursuant to Code of Civil Procedure section 391.4, this action is DISMISSED as to the M&Y Defendants who moved for security and for whose benefit the \$15,000 security was ordered.

The

dismissal of those Defendants does not, however, presently dispose of the action against the State Farm Defendants. Those Defendants did not move for the security previously ordered, and the \$15,000 security was not ordered for their benefit. Section 391.4 therefore does not presently authorize dismissal as to them.

Nor

does the Court proceed with the State Farm Defendants’ Special Motion to Strike. Code of Civil Procedure section 391.6 provides that when a motion pursuant to section 391.1 is filed before trial, “the litigation is stayed” and, if the motion is granted, the stay continues until 10 days after the required security has been furnished and the moving defendant given written notice thereof. In *Hanna v. Little League Baseball, Inc.* (2020) 53 Cal.App.5th 871, the Court of Appeal construed this language to mean that “the entirety of the litigation is stayed” upon the filing of a motion under section 391.1 and that the stay remains effective until the conditions specified in section 391.6

have occurred. (Id. at pp. 879-880.)

Thus,

although the security was ordered for the benefit of only the M&Y Defendants, the statutory stay was not limited to litigation involving those Defendants. It applied to the litigation as a whole. Plaintiff has never furnished the security. The statutory condition for termination of the stay following the granting of the motion therefore has not occurred. The Court declines to treat the dismissal of the M&Y Defendants under section 391.4 as implicitly terminating a stay that section 391.6 expressly applies to the entirety of the litigation and conditions upon the furnishing of the required security.

Accordingly,

the stay under Code of Civil Procedure section 391.6 remains in effect as to further litigation against the State Farm Defendants pending further order of the Court. The Court therefore does not reach the merits of the remaining Defendants' Special Motion to Strike pursuant to Code of Civil Procedure section 425.16, and that motion is taken OFF CALENDAR without prejudice.

Nothing

in this Order precludes the two remaining Defendants from seeking appropriate relief pursuant to Code of Civil Procedure sections 391.1 through 391.4, including an order requiring Plaintiff to furnish security for their benefit.

Any such motion shall be based upon the statutory requirements applicable to those Defendants, including whether there is a reasonable probability that Plaintiff will prevail in the litigation against the moving Defendants. The Court expresses no opinion at this time as to the merits of any such motion. The Clerk shall give notice.